

POLITY TOPIC 37 - CVC AND CBI - ASCII MASTER FLOW DIAGRAM

[1/12] IDENTITY AND ROLE FIREWALL

CVC Act 2003 -> statutory vigilance, supervision, advice

CBI Resolution 1 Apr 1963 -> executive-created organisation

DSPE Act 1946 -> statutory police establishment and principal CBI police powers

CVO -> departmental prevention/discipline liaison

Lokpal -> complaint and referred-matter route

Prosecutor -> presents State case | Court -> cognizance, trial, guilt

Core warning: advice != FIR != charge sheet != conviction

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[2/12] CHRONOLOGY

1941 Special Police Establishment in wartime supply-corruption setting
-> 1946 DSPE Act gives continuing statutory police framework
-> 1 Apr 1963 Government Resolution establishes CBI
-> 1964 Government Resolution establishes CVC after Santhanam Committee
-> 18 Dec 1997 Vineet Narain independence directions
-> 1998 CVC Ordinance gives interim statutory bridge
-> 1999 Bill process -> 11 Sep 2003 CVC Act
-> 16 Jan 2014 Lokpal Act amendments operative
-> 14 Nov 2021 DSPE Director-extension amendment operative

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[3/12] CVC DESIGN - SECTIONS 3 TO 6

Composition: Central Vigilance Commissioner (Chairperson) + not more than 2 VCs

Qualification pools:

A. AIS/Union service or civil post: vigilance, policy, administration incl. police

B. central statutory corporation/government company: finance incl. banking/insurance, law, vigilance, investigations

Category guard: if 3 offices filled, not more than 2 from either pool

Appointment: President <- PM (chair) + Home Minister + Lok Sabha LoP/substitute

Term: 4 years or age 65, earlier; VC->CVC allowed, aggregate service <=4 years

Removal: proved misconduct/incapacity -> President reference -> Supreme Court inquiry;
separate listed direct grounds; post-tenure government-employment limits

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[4/12] CVC SECTION 8 - POWER AND BOUNDARY

Superintend DSPE investigation of PC Act and connected same-trial offences

-> give lawful directions

X never require investigation/disposal of a particular case in a particular manner

Inquire/cause inquiry or investigation on Central reference or covered complaint

Review DSPE investigation progress + prosecution-sanction applications

Advise Union/covered central bodies + supervise vigilance administration

Civil-court inquiry powers do not create police, prosecution or conviction power

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[5/12] CVO, ADVICE, REPORTING AND PIDPI

CVC -> CVO -> preventive vigilance | complaint scrutiny | disciplinary coordination

CVO X police station | prosecutor | final disciplinary authority

CVC advice may be rejected -> section 17 written reasons communicated to CVC

section 14 annual report within 6 months of year-end:

 separate relevant DSPE part -> President -> both Houses of Parliament

PIDPI Resolution 21 Apr 2004:

 CVC designated agency -> protected written disclosure -> identity confidentiality

 X anonymous/pseudonymous protected route | X conviction power

Whistle Blowers Protection Act 2014 not used as operative authority without commencement

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[6/12] CBI ORGANISATION AND DSPE LEGAL STACK

Stable CBI categories: anti-corruption | economic offences | special crimes
support/forensics/prosecution | INTERPOL NCB

Organisational category never enlarges legal jurisdiction

DSPE section 2 -> Union Territory police-power baseline

DSPE section 3 -> Central Government notification of offences/classes

Public importance or "central agency" label is not a jurisdiction source

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[7/12] DSPE SECTIONS 4, 5 AND 6

section 4(1): CVC superintendence for PC Act investigations

section 4(2): Central Government superintendence for other DSPE matters

section 4(3): administration in Director

section 5: Central order extends powers/jurisdiction to State area for notified offences

section 6: State consent for ordinary exercise in State

 general consent = standing, defined, possibly conditional

 specific consent = named case/facts/persons/offences

Sequence: notified offence -> section 5 extension -> section 6 consent

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[8/12] WITHDRAWAL AND CONSTITUTIONAL COURTS

State withdraws general consent:

- existing investigation validly begun -> may continue: Kazi Lhendup Dorji (1994)

- new investigation -> fresh consent or other lawful route ordinarily required

- Fertico (2020) is fact-specific; no universal post-facto-cure rule

CPDR Constitution Bench (2010):

- High Court Art.226 / Supreme Court Art.32 may order CBI probe without State consent

- source = constitutional judicial review, not deemed consent

- use sparingly, cautiously, exceptionally; Union executive cannot self-invoke exception

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[9/12] VINEET NARAIN, SECTION 6A AND PC ACT GATES

Vineet Narain (1997):

- statutory CVC trajectory | CVC anti-corruption oversight | Director 2-year floor
- then CVC-Home Sec-Personnel Sec selection route | transfer/work-allocation safeguards
- CBI Manual discipline | Single Directive struck down

Former DSPE section 6A revived senior-rank approval shield

- > Subramanian Swamy v Director CBI (2014): invalid under Article 14

Current distinct PC Act gates:

- section 17A -> previous approval before decision-linked inquiry/investigation
 - exception: on-the-spot undue-advantage arrest
- section 19 -> sanction before court cognizance of specified offences

Neither approval nor sanction determines guilt

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[10/12] DIRECTOR, SENIOR POSTS, LOKPAL AND PROSECUTION

section 4A Director committee:

PM + Lok Sabha LoP/largest opposition leader + CJI/SC judge nominee

panel from IPS on seniority + integrity + anti-corruption investigation experience

section 4B: minimum 2 years; transfer needs committee consent

extension = public interest + committee + written reasons + 1 year at a time

aggregate maximum 5 years, never automatic

Alok Kumar Verma (2019): divestment can be transfer-like; process cannot be bypassed

section 4C SP+ committee: CVC + VCs + Home Secretary + Personnel Secretary; consult Director

section 4BA Director of Prosecution: Central appointment on CVC recommendation; ≥ 2 years

Lokpal ss.20/25: CVC preliminary-inquiry route + referred-DSPE superintendence;

no particular-case dictation

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[11/12] PERFORMANCE PROBLEMS AND REFORM MATCH

Political-control allegation -> auditable allocation, recusals, protected transfers

Resolution-based CBI status -> debated dedicated law, preserving federalism and courts

Deputation/manpower gaps -> stable multidisciplinary cadre with external accountability

Forensic/digital delay -> laboratories, standards, chain-of-custody capacity

Consent disputes -> lawful model instruments, time-bound requests, joint coordination

Sanction/prosecution delay -> dashboards, reasoned decisions, prosecution coordination

Weak follow-up on CVC advice -> substantive reasons + CVO protection + section 14 scrutiny

Rule: every autonomy gain requires audit, reasons, judicial review and due process

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[12/12] PRELIMS TRAPS, PYQ ROUTE AND QUALIFIED VERDICT

Never write:

CBI statutory/constitutional | CVC controls all CBI | State consent always/never needed
withdrawal retrospectively voids completed investigation | five-year Director term automatic
section 17A = section 19 | CVC/CBI convict or punish | Lokpal permanently runs CBI

2021 GS-II answer route:

CBI/DSPE identity -> State List -> ss.5-6 -> general/specific consent
-> prospective withdrawal/Kazi -> Arts.32/226 CPDR exception -> federal verdict

QUALIFIED VERDICT:

CVC-CBI legitimacy requires operationally insulated investigation, bounded supervision,
cooperative federal consent, timely prosecution, parliamentary system scrutiny,
due process and final judicial determination of guilt.